

		convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues” (<i>Id.</i>, § 1048, subd. (b).) “It is within the discretion of the court to bifurcate issues or order separate trials of actions ... and to determine the order in which those issues are to be decided.” (<i>Royal Surplus Lines Ins. Co. v. Ranger Ins. Co.</i> (2002) 100 Cal.App.4th 193, 205.) Defendants contend bifurcation is warranted because separating of liability and damages will promote judicial economy. Whether a dangerous condition existed, whether there was notice of the dangerous condition, and comparative fault are discrete issues to be determined in connection with liability. If there is no liability, then damages will not have to be addressed. The jury will not be bogged down with damages issues when determining if there is liability. Defendants assert that the evidence concerning damages is extensive. (Whirl Decl. ¶¶ 6-7, Exhs. A-B.) Additionally, Defendants contend the sympathy generated by Plaintiff’s injuries may distract and prejudice the jury. Defendants argue that bifurcating liability will ensure Defendants are not prejudicially impacted by testimony that has no bearing on whether there is any liability. Determining liability prior to starting the damages phase may save a substantial amount of time and expense if the jury finds that there was no dangerous condition or that Defendants did not have notice of the dangerous condition. Plaintiff did not file an opposition. The motion is granted. Defendants to give notice.
9	Martinez vs. AN SCPB, LLC	TENTATIVE RULING: For the reasons set forth below, the motion by Defendant An SCPB, LLC for sanctions in the form of an adverse inference jury instruction against Plaintiff Haley Martinez is DENIED without prejudice. <u>Statement of Law</u> The court may impose sanctions on any party engaging in the misuse of the discovery process. (<i>See</i> Code Civ. Proc., § 2023.030.) Disobeying a court order to provide discovery is a misuse of the

discovery process. (Code Civ. Proc., § 2023.010, subd. (g).) Once a party is ordered by the court to provide responses to discovery, continued failure to respond may result in the imposition of more severe sanctions. (See Code Civ. Proc., § 2031.300(c) (as it relates to requests for production)).

If a party fails to obey a court order regarding discovery, the court may impose whatever sanctions are just, including any of the following:

- Money sanctions—an award of reasonable costs and fees incurred as a result of the failure to obey (including fees on the sanctions motion) (Code Civ. Proc., § 2023.030, subd. (a))
- Issue sanctions—ordering that designated facts be “taken as established” against the party guilty of discovery misuse (Code Civ. Proc., § 2023.030, subd. (b));
- Evidentiary sanctions—prohibiting the party guilty of discovery misuse from introducing designated matters in evidence (Code Civ. Proc., § 2023.030, subd. (c));
- Terminating (“doomsday”) sanctions—striking pleadings, in whole or in part; or dismissing that party’s action, in whole or in part; or staying further proceedings by that party until the order is obeyed; or rendering default judgment against that party (Code Civ. Proc., § 2023.030, subd. (d)); and
- Contempt sanctions (Code Civ. Proc., § 2023.030, subd. (e)).

(See also Code Civ. Proc., § 2031.310, subd. (i).)

The burden of proof is on the moving party to show (by declarations) the facts essential to an award of sanctions. The moving party need only show the failure to obey the court’s earlier discovery orders, though disobedience is not required if, under the circumstances, such an order would have been futile. (*Do It Urself Moving & Storage, Inc. v. Brown, Leifer, Slatkin & Berns* (1992) 7 Cal.App.4th 27, 34-36 [upholding trial court order precluding accounting evidence in support of complaint where, plaintiffs “in essence . . . admitted” at status conference that they would not be able to provide an accounting].) Thereafter, the burden of proof shifts to the party seeking to avoid sanctions to establish a satisfactory excuse for his or her conduct. (*Corns v. Miller* (1986) 181 Cal.App.3d 195, 201; *Puritan Ins. Co. v. Superior Court* (1985) 171 Cal.App.3d 877, 884).

Separate Statement

Plaintiff opposes the motion on procedural grounds because Defendant failed to file a separate statement. Rule of Court 3.1345(a)(7) requires that a separate statement is required for a discovery motion that seeks “issue or evidentiary sanctions.”

Defendant argues that a separate statement is not required here because Defendant is not seeking further responses, but is seeking a jury instruction.

The court agrees with Plaintiff that this motion for evidentiary sanctions requires a separate statement. Defendant has the burden, as the moving party, to establish that prior discovery questions were propounded that relate to the evidentiary sanction sought. Knowing the specific discovery requests or discovery responses at issue, Plaintiff’s purported insufficient production of documents to that discovery is insufficient, would aid the court in determining whether or not the evidentiary sanction that Defendant seeks relates to the discovery request at issue and/or is appropriate to address the alleged discovery misuse.

The motion is, therefore, procedurally defective.

The court, however, will nonetheless consider the merits of the motion given that the moving papers, taken as a whole, provide sufficient notice and context to the basis of Defendant’s request.

Spoliation of Evidence

Here, Defendant seeks an evidentiary sanction with a jury instruction that Plaintiff willfully suppressed evidence and that the jury must presume the evidence was adverse to her case. Alternatively, Defendant seeks an evidentiary sanction with similar, but lesser stringent, jury instructions—e.g., *if* the jury finds Plaintiff has willfully suppressed evidence the jury **must** presume the evidence was adverse to her case; or *if* the jury finds Plaintiff has willfully suppressed evidence the jury **may** presume the evidence was adverse to her case.

Defendant argues that such evidentiary sanctions are appropriate because Plaintiff spoliated evidence.

Spoliation of evidence “is defined as the destruction or alteration of relevant evidence or the failure to preserve evidence for another party’s use in pending or future litigation.” (*Victor Valley Union High School District v. Superior Court* (2023) 91 Cal.App.5th 1121, 1139

[citing other cases].) “[T]he party moving for discovery sanctions based on the spoliation of evidence must make an initial prima facie showing that the responding party in fact destroyed evidence that had a substantial probability of damaging the moving party’s ability to establish an essential element of his claim or defense.” (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1227 [citing *National Council Against Health Fraud, Inc. v. King Bio Pharmaceuticals, Inc.* (2003) 107 Cal.App.4th 1336, 1346-1347 and cases cited therein].) An adverse jury instruction, like the one Defendant seeks, “may be given only if there is evidence of willful suppression, which one appellate court has described as “evidence that a party destroyed evidence with the intention of preventing its use in litigation.” (*Bader v. Johnson & Johnson* (2022) 86 Cal.App.5th 1094, 1129).

Here, the court finds that Defendant has not met its burden of establishing that Plaintiff willfully destroyed or suppressed evidence with the intention of preventing its use in litigation and that the alleged destroyed evidence had a substantial probability of damaging the moving party’s ability to establish an essential element of his claim or defense.

Defendant argues that during Plaintiff’s deposition in June 2024, Plaintiff produced partial text messages between her and several employees in 2022. However, Defendant did not have the full context of those text messages and Plaintiff testified that she lost her old phone that that her iCloud ran out of storage at some point and stopped backing up content, which is why she does not have the full text messages with key witnesses. In June 2024, therefore, at her deposition, Plaintiff testified that her iCloud had been out of storage for a long time.

The court then allowed for a forensic inspection of the Plaintiff’s iCloud. The forensic inspection failed to find the 2022 text messages that were partially produced at Plaintiff’s deposition. However, the forensic inspection found that there were messages from October 26, 2024, on the iCloud. Defendant argues that given that “newer” messages were stored on the iCloud, this undermines Plaintiff’s testimony in June 2024 that the iCloud had run out of storage for a long time. Plaintiff would have had to delete storage on the iCloud for new documents to be backed up on October 26, 2024.

The court finds that this is insufficient to establish that Plaintiff did, in fact, willfully destroy evidence after Defendant sought such evidence. As the reply declaration of Joseph Greenfield establishes, the forensic examination performed “would not detect any record or indication of deletion or destruction of data within the iCloud backup or on the